

DELAWARE FORM

DIVISION OF REVENUE REW-EST



REAL ESTATE TAX RETURN DECLARATION OF ESTIMATED INCOME TAX Formerly 5403

RESET**PRINT**

Form REW-EST must be completed for all conveyances, and must be presented at the time of recording.

PART 1**DESCRIPTION OF THE PROPERTY****ADDRESS OF THE PROPERTY****ADDRESS****ADDRESS 2****CITY****STATE****ZIP CODE****TAX PARCEL NO.****NEW CASTLE****KENT****SUSSEX****DATE OF TRANSFER****PART 2****TRANSFEROR/SELLER IS:**

Individual or Revocable Living Trust



Corporation



Trust or Estate



Business Trust



Partnership



S Corporation



Limited Liability Company



Other:

PART 3**TRANSFEROR OR SELLER ACQUIRED PROPERTY BY:**

Purchase



Gift



Inheritance



1031 Exchange



Foreclosure / Repossession



Other

PART 4**TRANSFEROR/SELLER'S NAME; SSN OR EIN; AND ADDRESS TO WHICH CORRESPONDENCE IS TO BE MAILED AFTER SETTLEMENT****FIRST NAME****LAST NAME****TAXPAYER ID****ADDRESS****ADDRESS 2****CITY****STATE****ZIP CODE**

Enter only one name and SSN or EIN per return. If more than one transferor/seller, use separate forms for each; however, if transferors/sellers are spouses, enter only the primary taxpayer name and SSN, and only file one return. If transferor/seller is a pass-through entity, list EIN of the pass-through entity and attach a schedule listing each non-resident member or stockholder and their share of the tax being paid with the return.

PART 5**IF APPLICABLE, CHECK APPROPRIATE BOX. (Check no more than one box.)****RESET**

Transferor/seller is a resident (a) individual, (b) pass-through entity or (c) corporation, and not subject to withholding under 30 Del. C §§ 1126, 1606 or 1909;



Sale or exchange exempt from gain realization;



Gain realized excluded from income for tax year of sale or exchange;



Sale exempt due to foreclosure. (See Instructions)



If any box in Part 5 is checked, **DO NOT** complete Parts 6, 7 and 8 below. No payment is due at this time.

PART 6**COMPUTATION OF PAYMENT AND TAX TO BE WITHHELD (See instructions.)**

6a	TOTAL SALES PRICE		\$	.00
6b	LESS SELLING EXPENSES/REDUCTIONS TO SALE PRICE		\$	.00
6c	NET SALES PRICE (Subtract Line 6b from Line 6a)		\$	.00
6d	ADJUSTED BASIS OF PROPERTY OR LIENS PAID AT SETTLEMENT		\$	.00
6e	TOTAL GAIN (Subtract line 6d from line 6c)		\$	.00
6f	DELAWARE ESTIMATED INCOME TAX DUE - Multiply line 6e by 8.7% for C corp., and by 6.6% for all others		\$	.00

NOTE: If Part 6 is not filled out or is incomplete, the required 6.6% or 8.7% will be withheld from the net proceeds at settlement and submitted to the Division of Revenue as required by law.

PART 7

Check this box if the transferor/seller is reporting gain under the installment method. No tax is payable at this time.

NOTE: If completing this section, when you recognize any gain arising from the sale of property in the State of Delaware, you must report and remit the tax due to the State of Delaware on that transaction.

PART 8**8 DELAWARE ESTIMATED INCOME TAX PAID (See instructions)** \$.00

Under penalty of perjury, I declare that I have examined this return and to the best of my knowledge and belief, it is true, correct and complete. If prepared by a person other than the transferor/seller, the declaration is based on all information of which the preparer has any knowledge. Transferor/Seller, please sign and print full name and title (if any):

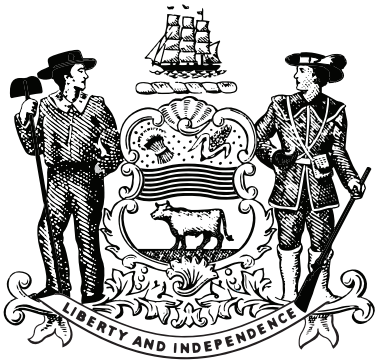
AUTHORIZED SIGNATURE

PRINT NAME

DATE

TITLE

DFREWEST2021019999V1
Revision 20211014



DELAWARE DECLARATION OF ESTIMATED INCOME TAX

REW-EST

Revised 01/31/22

INSTRUCTIONS

Every non-resident individual, pass through entity or corporation who makes, executes, delivers, accepts, or presents for recording any document, except those exemptions defined or described in Sections 1126, 1606 and 1909 of Title 30, or in whose behalf any document is made, executed, delivered, accepted or presented for recording, shall be subject to pay for and in respect to the transaction or any part thereof, an estimated tax payment at a rate of 8.7% for C Corporations and 6.6% for all other entities of the value of the gain on the property sold as represented by such document, which tax shall be payable at the time of making, execution, delivery, acceptance or presenting of such document for recording. Said tax is to be paid by the Transferor(s)/ Seller(s).

Specific Instructions

Part 1

Enter a description and address of the property transferred/sold, including the tax parcel number and date of transfer. If you need to describe transfer issues please do so here.

Part 2

Check the appropriate box to indicate whether the Transferor/Seller is an Individual or Revocable Living Trust, a Corporation, Trust or Estate, Business Trust, Partnership, S corporation, Limited Liability Company, or other, such as a Government Agency or Non-Profit corporation.

Part 3

Check the appropriate box to indicate how the transferor/seller acquired the property.

Part 4

Enter the Transferor/Seller's name; Social Security Number (SSN) or Employer Identification Number (EIN); and address to which correspondence is to be mailed after settlement. (Enter only one name and SSN or EIN per return. If more than one transferor/ seller, use separate forms for each; however, if Transferors/Sellers are husband and wife, enter only the primary taxpayer name and SSN, and only file one return. If transferor/seller is not an individual, list only EIN of non-individual transferor/seller and file only one Form REW-EST for such transferor/seller – no Form REW-EST should be filed for the members, partners, stockholders, trustees or other individuals or entities having an ownership interest in any such non-individual transferor/ seller.)

Part 5

Check the appropriate box to indicate if the transferor(s)/seller(s) are resident individuals, pass-through entities or corporations that are not subject to net gain withholding; the sale or exchange is exempt from capital gain recognition because of either Federal or Delaware exemption; the gain realized will be excluded from income for tax year of sale; or the sale is exempt due to foreclosure pursuant to 30 Del. C. § 1126(b)(3a)(3). If any of the above boxes in Part 5 are checked, stop here, do not complete Parts 6, 7 and 8 below, and no payment is due at this time. Be sure to only check one box.

Part 6

On line 6a enter the total sales price.

On line 6b enter the selling expenses/reductions to sale price.

On line 6c enter the net sales price by subtracting line 6b from line 6a.

On line 6d enter the adjusted basis. Adjusted basis includes the original purchase price of the property, non-deductible closing costs, and the cost of improvements, reduced by any depreciation previously taken for tax purposes.

On line 6e enter the total gain by subtracting line 6d from line 6c. This is the transferor's/seller's gain for purposes of computing your estimated payment for Delaware income tax purposes.

On line 6f enter the Delaware estimated income tax due by multiplying the amount on line 6e by 8.7% if the taxpayer is a C corporation, and by 6.6% for all other taxpayers.

Part 7

If the transferor(s)/seller(s) is/are reporting gain under the installment method no payment is due at this time, but by law you must report and remit any capital gain tax to the State of Delaware when any capital gain results from the sale of property in Delaware and is recognized for federal tax purposes.

Part 8

Enter the amount of Delaware estimated income tax due from Line 6f, unless you completed Part 7. This is the amount of estimated tax payment due to the Delaware Division of Revenue that you must remit with this form unless Part 7 is completed.

The Transferor/Seller must sign Form REW-EST, print their full name and title, if any. This form and the estimated income tax, if any, reported due and payable on this form must be remitted with the deed to the Recorder's Office before the Recorder shall record a deed conveying title in Delaware real estate. The tax returns or reports and the amounts of tax collected pursuant to Title 30 of the Delaware Code, Sections 1126, 1606 or 1909, and the Recorder's Office and its employees or agents, shall be subject to the secrecy provisions and penalties of Title 30 of the Delaware Code, Section 368.

If you need assistance with filling out this form please contact the Division of Revenue at (302) 577-8200.